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File No.: EXP202304344

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On February 23, 2023, and with an entry registration number (...), a complaint was received by this Agency against CHATWITH.IO WORLDWIDE, S.L. with NIF B88184239 (hereinafter, CHATWITH.IO). The reasons for the complaint are as follows:

The complainant alleges that after conducting a search on Google, they discovered that their name and surname were published in the directory of legal professionals iurisnow.com, in a profile identifying them as a lawyer specializing in social networks registered with the Illustrious Bar Association of Málaga, which they state is false.

Along with the notification, a printout of the website www.iurisnow.com is provided, showing their name and a registration number.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to CHATWITH.IO for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on April 19, 2023, as stated in the certificate in the file.

Once the notification was made, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, an additional attempt at paper notification was made for informational purposes, in accordance with the provisions of Article 42 of the LPACAP - by postal mail - which was returned as "Returned to Origin due to excess (Not collected at Office)" on May 8, 2023, after two previous unsuccessful delivery attempts on April 27 and 28, 2023.

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The complained party has not responded to the transfer action and request for information notified.

THIRD: On May 19, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: On May 19, 2023, the complainant submitted a written document to this Agency with entry registration number (...), stating that their complaint was directed against the website IURISNOW.COM, while the notification lists CHATWITH.IO WORLDWIDE, S.L. as the complained party.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency

for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Information to be provided when personal data is obtained from the data subject

Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, whereby:

"1. When personal data relating to a data subject is obtained, the data controller shall provide the data subject with all the information indicated below at the time of obtaining the data:

- a) the identity and contact details of the controller and, where applicable, of its representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;

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f) if applicable, the intention of the data controller to transfer personal data to a third country or international organization and the existence or absence of a decision of adequacy by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49, paragraph 1, second sentence, reference to the appropriate or adequate safeguards and the means to obtain a copy of these or the location where they have been made available.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time when the personal data are obtained, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the data controller access to personal data concerning the data subject, and their rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;
- c) when the processing is based on Article 6, paragraph 1, letter a), or Article 9, paragraph 2, letter a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and has been informed of the possible consequences of not providing such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the data controller intends to further process personal data for a purpose other than that for which they were collected, it shall provide the data subject, prior to that further processing, information on that other purpose and any other relevant information in accordance with paragraph 2.

The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information.

III

Information to be provided when personal data have not been obtained from the data subject

According to Article 14 of the GDPR:

"1. When personal data have not been obtained from the data subject, the data controller shall provide the following information:

- a) the identity and contact details of the controller and, where applicable, of its representative;
- b) the contact details of the data protection officer, where applicable;

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c) the purposes of the processing for which the personal data are intended, as well as the legal basis for the processing;

d) the categories of personal data concerned;

e) the recipients or categories of recipients of the personal data, if applicable;

f) if applicable, the intention of the controller to transfer personal data to a recipient in a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49, paragraph 1, second subparagraph, reference to the appropriate or suitable safeguards and the means to obtain a copy of them or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the controller shall provide the data subject with the following information necessary to ensure fair and transparent data processing regarding the data subject:

a) the period for which the personal data will be retained or, when that is not possible, the criteria used to determine that period;

b) when the processing is based on Article 6, paragraph 1, letter f), the legitimate interests of the controller or a third party;

c) the existence of the right to request from the controller access to personal data concerning the data subject, and their rectification or erasure, or the restriction of their processing, and to object to the processing, as well as the right to data portability;

d) when the processing is based on Article 6, paragraph 1, letter a), or Article 9, paragraph 2, letter a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent before its withdrawal;

e) the right to lodge a complaint with a supervisory authority;

f) the source from which the personal data originate and, if applicable, whether they come from publicly accessible sources;

g) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, meaningful information about the logic involved, as well as the significance and the expected consequences of such processing for the data subject.

3. The controller shall provide the information indicated in paragraphs 1 and 2:

a) within a reasonable period, once the personal data have been obtained, and at the latest within one month, taking into account the specific circumstances in which the data are processed;

b) if the personal data are to be used for communication with the data subject, at the latest at the time of the first communication to that data subject, or

c) if it is intended to communicate them to another recipient, at the latest at the time when the personal data are first communicated.

4. When the controller intends to further process the personal data for a purpose other than that for which they were obtained, it shall provide the data subject, prior to such further processing, information about that other purpose and any other relevant information indicated in paragraph 2.

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5. The provisions of paragraphs 1 to 4 shall not apply when and to the extent that:

- a) the data subject already has the information;
- b) the communication of such information is impossible or involves a disproportionate effort, in particular for processing for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, subject to the conditions and safeguards indicated in Article 89, paragraph 1, or to the extent that the obligation mentioned in paragraph 1 of this article may prevent or seriously hinder the achievement of the objectives of such processing. In such cases, the controller shall take appropriate measures to protect the rights, freedoms, and legitimate interests of the data subject, including making the information public;
- c) obtaining or communicating the information is expressly provided for by Union or Member State law applicable to the controller and establishes appropriate measures to protect the legitimate interests of the data subject; or
- d) when the personal data must continue to be kept confidential based on a professional secrecy obligation regulated by Union or Member State law, including a legal secrecy obligation.

IV

Principles relating to processing

Letter d) of Article 5.1 of the GDPR states:

"1. Personal data shall be:

(...)

d) accurate and, where necessary, kept up to date; all reasonable measures shall be taken to ensure that inaccurate personal data are erased or rectified without delay ('accuracy');"

V

Lawfulness of processing

Article 6.1 of the GDPR provides that:

"1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is a party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks."

VI

Conclusion

In this case, after analyzing the reasons presented by the respondent party that are in the file, it is considered that the initiation of sanctioning proceedings is not warranted, since, according to the evidence collected by this Agency, specifically, from the query on the website www.iurisnow.com regarding "specialist lawyers in social networks in Málaga" (pages 5 to 9 of the file), there is no record of the complainant's data being published on that website.

Additionally, a search was conducted on the website www.iurisnow.com for registered lawyers using the complainant's data (name and surname) (page 10 of the file), with no results found.

Finally, an internet search was conducted using the complainant's data, with no results obtained relating to the complainant on the website www.iurisnow.com (page 16 of the file).

Therefore, based on the information indicated in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Data Protection Agency.

Regarding the document submitted by the complainant dated May 19, 2023, although the privacy policy of the website www.iurisnow.com (page 11 of the file) states that the owner of the website is IURIS MARKETING, S.L. (B88184239), as evidenced in the diligence dated February 2, 2024, in the file, the name IURIS MARKETING, S.L. is the former name of CHATWITH.IO WORLDWIDE, S.L. All of this is without prejudice to any subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, as it has not been possible to attribute responsibility for the processing as indicated, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to CHATWITH.IO WORLDWIDE, S.L. and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions established in Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may, optionally, file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Court of the National Court, in accordance with the provisions of Article 25 and in paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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